



House of Representatives

General Assembly

File No. 641

February Session, 2026

House Bill No. 5438

House of Representatives, April 15, 2026

The Committee on Judiciary reported through REP. STAFSTROM of the 129th Dist., Chairperson of the Committee on the part of the House, that the bill ought to pass.

**AN ACT CONCERNING EVIDENCE CONSIDERED FOR THE
ISSUANCE OF A RESTRAINING ORDER OR CIVIL PROTECTION
ORDER.**

Be it enacted by the Senate and House of Representatives in General Assembly convened:

1 Section 1. Subsection (e) of section 46b-15 of the 2026 supplement to
2 the general statutes is repealed and the following is substituted in lieu
3 thereof (*Effective October 1, 2026*):

4 (e) (1) At the hearing on any application under this section, [if] the
5 applicant or respondent may present evidence in support of or refuting
6 the claims presented in the application, including, but not limited to,
7 authenticated copies of electronic communications, telephone call logs
8 or voicemail recordings, or other evidence demonstrating or refuting a
9 pattern of harassing or other similar behavior. The court may consider
10 such evidence in conjunction with other evidence presented in
11 determining whether to issue orders authorized under this section.

12 (2) If the court grants relief pursuant to subsection (b) of this section

13 and the applicant and respondent are spouses, or persons who have a
14 dependent child or children in common and who live together, and if
15 necessary to maintain the safety and basic needs of the applicant or the
16 dependent child or children in common of the applicant and
17 respondent, any orders entered by the court may include, in addition to
18 the orders authorized under subsection (b) of this section, any of the
19 following: [(1)] (A) An order prohibiting the respondent from [(A)] (i)
20 taking any action that could result in the termination of any necessary
21 utility services or services related to the family dwelling or the dwelling
22 of the applicant, [(B)] (ii) taking any action that could result in the
23 cancellation, change of coverage or change of beneficiary of any health,
24 automobile or homeowners insurance policy to the detriment of the
25 applicant or the dependent child or children in common of the applicant
26 and respondent, or [(C)] (iii) transferring, encumbering, concealing or
27 disposing of specified property owned or leased by the applicant; [(2)]
28 (B) an order providing the applicant with temporary possession of an
29 automobile, checkbook, documentation of health, automobile or
30 homeowners insurance, a document needed for purposes of proving
31 identity, a key or other necessary specified personal effects; or [(3)] (C)
32 an order that the respondent: [(A)] (i) Make rent or mortgage payments
33 on the family dwelling or the dwelling of the applicant and the
34 dependent child or children in common of the applicant and
35 respondent, [(B)] (ii) maintain utility services or other necessary services
36 related to the family dwelling or the dwelling of the applicant and the
37 dependent child or children in common of the applicant and
38 respondent, [(C)] (iii) maintain all existing health, automobile or
39 homeowners insurance coverage without change in coverage or
40 beneficiary designation, or [(D)] (iv) provide financial support for the
41 benefit of any dependent child or children in common of the applicant
42 and the respondent, provided the respondent has a legal duty to
43 support such child or children and the ability to pay. The court shall not
44 enter any order of financial support without sufficient evidence as to the
45 ability to pay, including, but not limited to, financial affidavits. If at the
46 hearing no order is entered under this subsection or subsection (d) of
47 this section, no such order may be entered thereafter pursuant to this

48 section. Any order entered pursuant to this subsection shall not be
49 subject to modification and shall expire one hundred twenty days after
50 the date of issuance or upon issuance of a superseding order, whichever
51 occurs first. Any amounts not paid or collected under this subsection or
52 subsection (d) of this section may be preserved and collectible in an
53 action for dissolution of marriage, custody, paternity or support.

54 Sec. 2. Section 46b-16a of the general statutes is repealed and the
55 following is substituted in lieu thereof (*Effective October 1, 2026*):

56 (a) Any person who has been the victim of sexual abuse, sexual
57 assault or stalking may make an application to the Superior Court for
58 relief under this section, provided such person has not obtained any
59 other court order of protection arising out of such abuse, assault or
60 stalking and does not qualify to seek relief under section 46b-15, as
61 amended by this act. As used in this section, "stalking" means two or
62 more wilful acts, performed in a threatening, predatory or disturbing
63 manner of: Harassing, following, lying in wait for, surveilling,
64 monitoring or sending unwanted gifts or messages to another person
65 directly, indirectly or through a third person, by any method, device or
66 other means, that causes such person to reasonably fear for his or her
67 physical safety.

68 (b) The application shall be accompanied by an affidavit made by the
69 applicant under oath that includes a statement of the specific facts that
70 form the basis for relief. If the applicant attests that disclosure of the
71 applicant's location information would jeopardize the health, safety or
72 liberty of the applicant or the applicant's children, the applicant may
73 request, on a form prescribed by the Chief Court Administrator, that his
74 or her location information not be disclosed. Upon receipt of the
75 application, if the allegations set forth in the affidavit meet the
76 requirements of subsection (a) of this section, the court shall schedule a
77 hearing not later than fourteen days from the date of the application. If
78 a postponement of a hearing on the application is requested by either
79 party, no ex parte order shall be continued except upon agreement of
80 the parties or by order of the court for good cause shown. If the court is

81 closed on the scheduled hearing date, the hearing shall be held on the
82 next day the court is open and any ex parte order that was issued shall
83 remain in effect until the date of such hearing. If the applicant is under
84 eighteen years of age, a parent, guardian or responsible adult who
85 brings the application as next friend of the applicant may not speak on
86 the applicant's behalf at such hearing unless there is good cause shown
87 as to why the applicant is unable to speak on his or her own behalf,
88 except that nothing in this subsection shall preclude such parent,
89 guardian or responsible adult from testifying as a witness at such
90 hearing. If the court finds that there are reasonable grounds to believe
91 that the respondent has committed acts constituting grounds for
92 issuance of an order under this section and will continue to commit such
93 acts, or acts designed to intimidate or retaliate against the applicant, the
94 court, in its discretion, may make such orders as it deems appropriate
95 for the protection of the applicant. If the court finds that there are
96 reasonable grounds to believe that an imminent danger exists to the
97 applicant, the court may issue an ex parte order granting such relief as
98 it deems appropriate. In making such orders, the court, in its discretion,
99 may consider relevant court records if the records are available to the
100 public from a clerk of the Superior Court or on the Judicial Branch's
101 Internet web site. Such orders may include, but are not limited to, an
102 order enjoining the respondent from: (1) Imposing any restraint upon
103 the person or liberty of the applicant; (2) threatening, harassing,
104 assaulting, molesting, sexually assaulting or attacking the applicant;
105 and (3) entering the dwelling of the applicant.

106 (c) No order of the court shall exceed one year, except that an order
107 may be extended by the court upon proper motion of the applicant,
108 provided a copy of the motion has been served by a proper officer on
109 the respondent, no other order of protection based on the same facts and
110 circumstances is in place and the need for protection, consistent with
111 subsection (a) of this section, still exists.

112 (d) The applicant shall cause notice of the hearing pursuant to
113 subsection (b) of this section and a copy of the application and the
114 applicant's affidavit and of any ex parte order issued pursuant to

115 subsection (b) of this section to be served by a proper officer on the
116 respondent not less than five days before the hearing. The cost of such
117 service, including mileage pursuant to section 52-261, shall be paid for
118 by the Judicial Branch. Upon the granting of an ex parte order, the clerk
119 of the court shall provide two copies of the order to the applicant. No
120 officer or person shall be entitled to a fee for service pursuant to this
121 section if timely return of service is not received by the court, absent a
122 court order authorizing such fee. For the purposes of this subsection,
123 timely return includes, but is not limited to, transmitting by facsimile or
124 other means, a copy of the return of service to the court prior to the
125 hearing followed by the delivery of the original return to the court
126 within a reasonable time after the hearing. Upon the granting of an
127 order after notice and hearing, the clerk of the court shall provide two
128 copies of the order to the applicant and a copy to the respondent. Every
129 order of the court made in accordance with this section after notice and
130 hearing shall be accompanied by a notification that is consistent with
131 the full faith and credit provisions set forth in 18 USC 2265(a), as
132 amended from time to time. Immediately after making service on the
133 respondent, the proper officer shall (1) send or cause to be sent, by
134 facsimile or other means, a copy of the application, or the information
135 contained in such application, stating the date and time the respondent
136 was served, to the law enforcement agency or agencies for the town in
137 which the applicant resides, the town in which the applicant is
138 employed and the town in which the respondent resides, and (2) as soon
139 as possible, but not later than two hours after the time that service is
140 executed, input into the Judicial Branch's Internet-based service tracking
141 system the date, time and method of service. If, prior to the date of the
142 scheduled hearing, service has not been executed, the proper officer
143 shall input into such service tracking system that service was
144 unsuccessful. The clerk of the court shall send, by facsimile or other
145 means, a copy of any ex parte order and of any order after notice and
146 hearing, or the information contained in any such order, to the law
147 enforcement agency or agencies for the town in which the applicant
148 resides, the town in which the applicant is employed and the town in
149 which the respondent resides, not later than forty-eight hours after the

150 issuance of such order, and immediately to the Commissioner of
151 Emergency Services and Public Protection. If the applicant is enrolled in
152 a public or private elementary or secondary school, including a technical
153 education and career school, or an institution of higher education, as
154 defined in section 10a-55, the clerk of the court shall, upon the request
155 of the applicant, send, by facsimile or other means, a copy of such ex
156 parte order or of any order after notice and hearing, or the information
157 contained in any such order, to such school or institution of higher
158 education, the president of any institution of higher education at which
159 the applicant is enrolled and the special police force established
160 pursuant to section 10a-142, if any, at the institution of higher education
161 at which the applicant is enrolled, if the applicant provides the clerk
162 with the name and address of such school or institution of higher
163 education.

164 (e) At the hearing on any application under this section, the applicant
165 or respondent may present evidence in support of or refuting the claims
166 presented in the application, including, but not limited to, authenticated
167 copies of electronic communications, telephone call logs or voicemail
168 recordings, or other evidence demonstrating or refuting a pattern of
169 harassing or other similar behavior. The court may consider such
170 evidence in conjunction with other evidence presented in determining
171 whether to issue orders authorized under this section.

172 ~~[(e)]~~ (f) If the court issues an ex parte order pursuant to subsection (b)
173 of this section and service has not been made on the respondent in
174 conformance with subsection (d) of this section, upon request of the
175 applicant, the court shall, based on the information contained in the
176 original application, extend any ex parte order for an additional period
177 not to exceed fourteen days from the originally scheduled hearing date.
178 The clerk of the court shall prepare a new order of hearing and notice
179 containing the new hearing date, which shall be served upon the
180 respondent in accordance with the provisions of subsection (d) of this
181 section.

182 ~~[(f)]~~ (g) An action under this section shall not preclude the applicant

183 from subsequently seeking any other civil or criminal relief based on the
184 same facts and circumstances.

185 Sec. 3. Subsection (e) of section 46b-38c of the general statutes is
186 repealed and the following is substituted in lieu thereof (*Effective October*
187 *1, 2026*):

188 (e) (1) A protective order issued under this section may include
189 provisions necessary to protect the victim from threats, harassment,
190 injury or intimidation by the defendant, including, but not limited to, an
191 order enjoining the defendant from (A) imposing any restraint upon the
192 person or liberty of the victim, (B) threatening, harassing, assaulting,
193 molesting or sexually assaulting the victim, or (C) entering the family
194 dwelling or the dwelling of the victim. A protective order issued under
195 this section may include provisions necessary to protect any animal
196 owned or kept by the victim including, but not limited to, an order
197 enjoining the defendant from injuring or threatening to injure such
198 animal. Such order shall be made a condition of the bail or release of the
199 defendant and shall contain the following notification: "In accordance
200 with section 53a-223 of the Connecticut general statutes, any violation
201 of this order constitutes criminal violation of a protective order which is
202 punishable by a term of imprisonment of not more than ten years, a fine
203 of not more than ten thousand dollars, or both. Additionally, in
204 accordance with section 53a-107 of the Connecticut general statutes,
205 entering or remaining in a building or any other premises in violation
206 of this order constitutes criminal trespass in the first degree which is
207 punishable by a term of imprisonment of not more than one year, a fine
208 of not more than two thousand dollars, or both. Violation of this order
209 also violates a condition of your bail or release, and may result in raising
210 the amount of bail or revoking release." Every order of the court made
211 in accordance with this section after notice and hearing shall be
212 accompanied by a notification that is consistent with the full faith and
213 credit provisions set forth in 18 USC 2265(a), as amended from time to
214 time. The information contained in and concerning the issuance of any
215 protective order issued under this section shall be entered in the registry
216 of protective orders pursuant to section 51-5c.

217 (2) Each person who receives an order of the court in accordance with
218 this subsection shall be given a notice that contains the following
219 language: "If a protective order has been issued on your behalf or on
220 behalf of your child, you may elect to give testimony or appear in a
221 family court proceeding remotely, pursuant to section 46b-15c. Please
222 notify the court in writing at least two days in advance of a proceeding
223 if you choose to give testimony or appear remotely, and your physical
224 presence in the courthouse will not be required in order to participate in
225 the court proceeding."

226 (3) At the hearing concerning the issuance of a protective order under
227 this section, the victim or defendant may present evidence in support of
228 or in opposition to the issuance of the order, including, but not limited
229 to, authenticated copies of electronic communications, telephone call
230 logs or voicemail recordings, or other evidence demonstrating or
231 refuting a pattern of harassing or other similar behavior. The court may
232 consider such evidence in conjunction with other evidence presented in
233 determining whether to issue orders authorized under this section.

This act shall take effect as follows and shall amend the following sections:

Section 1	October 1, 2026	46b-15(e)
Sec. 2	October 1, 2026	46b-16a
Sec. 3	October 1, 2026	46b-38c(e)

JUD *Joint Favorable*

The following Fiscal Impact Statement and Bill Analysis are prepared for the benefit of the members of the General Assembly, solely for purposes of information, summarization and explanation and do not represent the intent of the General Assembly or either chamber thereof for any purpose. In general, fiscal impacts are based upon a variety of informational sources, including the analyst's professional knowledge. Whenever applicable, agency data is consulted as part of the analysis, however final products do not necessarily reflect an assessment from any specific department.

OFA Fiscal Note

State Impact: None

Municipal Impact: None

Explanation

The bill makes procedural changes to how courts may consider evidence in applications for civil restraining or civil protection orders, resulting in no fiscal impact because courts have the capacity and expertise to meet the bill's requirements.

The Out Years

State Impact: None

Municipal Impact: None

OLR Bill Analysis**HB 5438*****AN ACT CONCERNING EVIDENCE CONSIDERED FOR THE
ISSUANCE OF A RESTRAINING ORDER OR CIVIL PROTECTION
ORDER.*****SUMMARY**

This bill explicitly allows, for civil restraining or civil protection order applications, the (1) applicant or respondent (the party against whom protection is sought) to present evidence supporting or refuting the claims in the application and (2) court to consider this evidence, along with other evidence presented, in deciding whether to issue the order. Similarly, the bill explicitly allows victims and respondents to present this evidence, and the court to consider it when determining whether to issue a family violence protective order (see BACKGROUND).

It also specifically allows the parties, at a hearing on whether to issue any of these orders, to present authenticated copies of electronic communications, telephone call logs or voicemail recordings, or other evidence demonstrating or refuting a pattern of harassing or other similar behavior.

It also makes technical changes.

EFFECTIVE DATE: October 1, 2026

BACKGROUND***Civil Restraining Order or Civil Protection Order***

A family or household member may apply for a civil restraining order for relief from physical abuse, stalking, or a pattern of threatening by another family or household member (CGS § 46b-15).

A victim of sexual abuse, sexual assault, or stalking may apply for a civil protection order if he or she is not eligible for the restraining order

described above (CGS § 46b-16a).

Family Violence Protective Order

At the recommendation of a family relations officer or the State Attorney's Office, a court may issue a family violence protection order in family violence cases to protect a victim from threats, harassment, injury, or intimidation. This order is issued at arraignment during a criminal proceeding (CGS § 46b-38c).

COMMITTEE ACTION

Judiciary Committee

Joint Favorable

Yea 41 Nay 0 (03/30/2026)